

FRONTIER TRIBAL ADMINISTRATION

“Between the state and the tribe, authority was negotiated.”

After expanding toward the frontier, the British faced a difficult question: How do you govern a mountainous society where local authority already exists? The answer was not simply to build offices and replace every local institution. Instead, the colonial state developed a frontier system that relied on political agents, tribal intermediaries, jirgas, allowances, special laws and, where necessary, military force. It was neither ordinary provincial administration nor complete tribal independence. It was a negotiated system of power. The state tried to reach the tribe. The tribe tried to protect its autonomy. Between them stood a network of officials, elders, agreements, customary practices and colonial regulations.

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“A conceptual model of the negotiated authority on the mountain frontier.”

WHAT WAS FRONTIER ADMINISTRATION?

Frontier administration was a distinctive colonial approach designed for areas where ordinary provincial bureaucracy was considered difficult, expensive, or politically unsuitable. In these regions, the state projected influence through a specialized framework that balanced central objectives with the realities of local tribal authority. This system allowed the state to manage the frontier while acknowledging the practical limitations of its penetration into the mountainous terrain.

FRONTIER

LIMITED STATE

PENETRATION LOCAL
AUTHORITY SPECIAL
ADMINISTRATION

“The logical pathway leading to the creation of special frontier administration.”

COLONIAL ADMINISTRATION

TRIBAL AUTHORITY

CUSTOMARY AUTHORITY

RELIGIOUS AUTHORITY

MILITARY AUTHORITY

LEGAL AUTHORITY

POLITICAL NEGOTIATION

ORDINARY PROVINCE VS FRONTIER

The distinction between ordinary colonial administration and frontier administration was fundamental. While the settled districts of Punjab and later the NWFP followed a regular bureaucratic model with courts and police, the tribal frontier operated through a more flexible, negotiated system. This distinction was not static; it changed over time and varied significantly across different locations along the frontier borderland.

Ordinary Administration

District officials, formal courts, police, taxation, and a regular bureaucratic hierarchy.

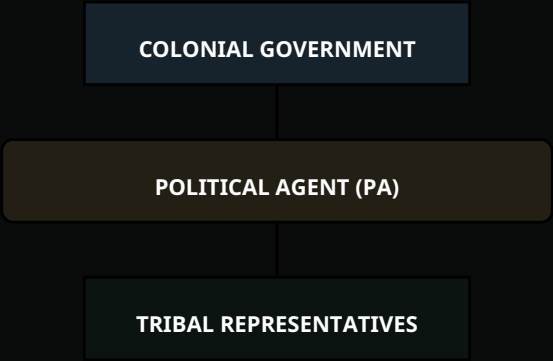
Frontier Administration

Political Agents, tribal intermediaries, jirgas, allowances, and special regulations like the FCR.

THE POLITICAL AGENT

The Political Agent (PA) was the central figure in the frontier system, holding concentrated executive, judicial, and security powers. Acting as the chief colonial official in a tribal agency, the PA was responsible for managing tribal relations, mediating disputes, and coordinating

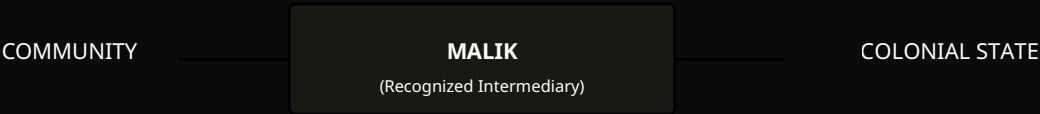
security. The office was a colonial administrative structure designed to project state power into autonomous zones while maintaining a bridge to the local communities.²



“The hierarchy of colonial frontier administration and tribal negotiation.”

MALIKS AND TRIBAL REPRESENTATION

In the Orakzai frontier, the colonial state relied on recognized tribal intermediaries known as **Maliks**. A Malik functioned as a bridge between the Political Agent and the local community, facilitating negotiation and administrative implementation. However, colonial recognition did not always equate to universal tribal legitimacy; the Malik system was a tool of state patronage that interacted with, and sometimes transformed, traditional leadership structures.⁴

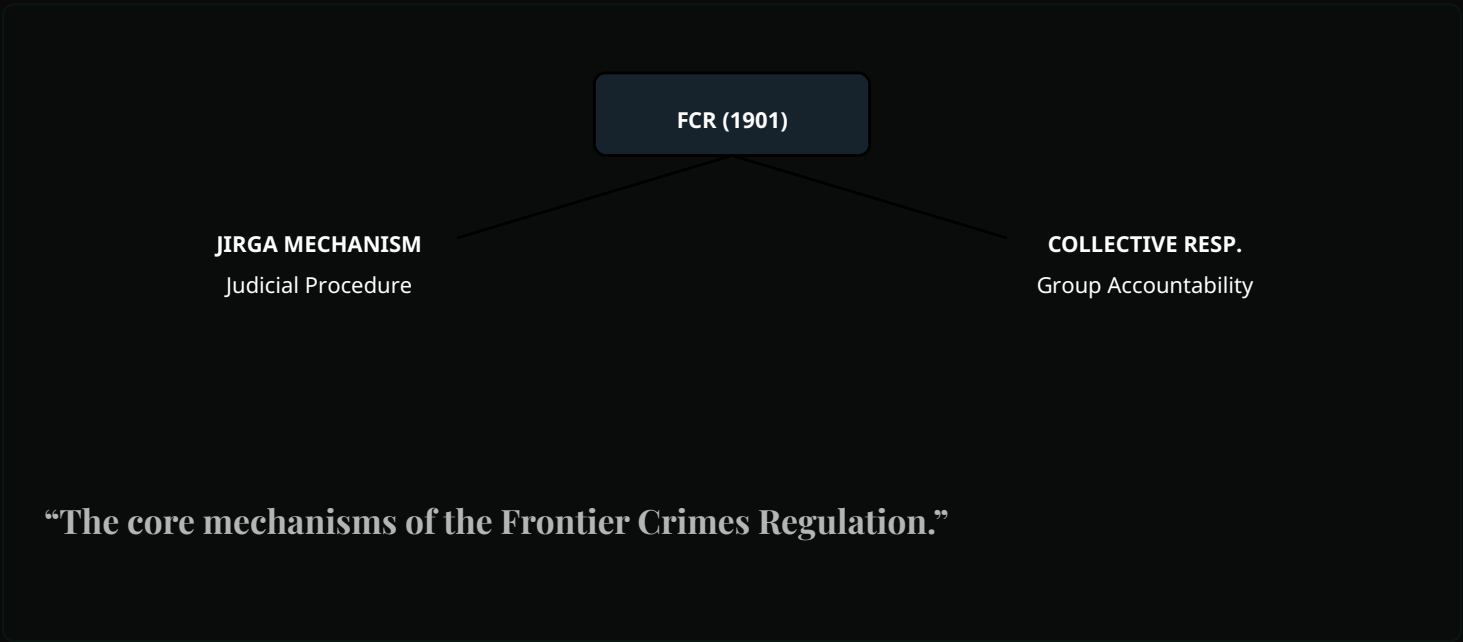


“The dual-facing role of the Malik in frontier negotiation.”

FRONTIER CRIMES REGULATION (FCR)

The Frontier Crimes Regulation (FCR), most notably the 1901 version, provided the special legal framework for governing the tribal areas. It concentrated powers in the Political Agent and utilized the ***Jirga*** as a judicial mechanism for dispute resolution and the enforcement

of agreements. A central and controversial feature was **Collective Responsibility**, which allowed the state to hold an entire clan accountable for the actions of an individual, serving as a tool for security and deterrence.¹



AUTHOR'S REFLECTION

Frontier administration was a system built on the tension between the desire for control and the reality of mountain autonomy. It was a world of Political Agents, Maliks, and special regulations—a world where the law of the state met the custom of the tribe. While it provided a framework for governance, it also created a special legal space that defined our relationship with the center for over a century. To understand the Orakzai today, we must understand this legacy of negotiated power and the resilience of a people who maintained their identity within a complex administrative machine.

“AUTHORITY WAS A DIALOGUE, NOT A DECREE.”

AUTHOR'S SYNTHESIS

